

HCS HB 1819 -- CHILD CARE FACILITIES

SPONSOR: Laubinger

COMMITTEE ACTION: Voted "Do Pass with HCS" by the Standing Committee on Children and Families by a vote of 12 to 0. Voted "Do Pass" by the Standing Committee on Rules-Administrative by a vote of 9 to 0.

The following is a summary of the House Committee Substitute for HB 1819.

This bill requires the Department of Elementary and Secondary Education to establish the following for any licensed child care facility:

- (1) Training and rules for non-restrained safe sleep policies for children one year of age or older and children with special needs. These policies must include safety procedures for the use of weighted blankets, and prohibit such use on any child under one year of age. Additionally, no weighted blanket used in a child care facility can exceed five pounds.
- (2) Safe rest options for non-napping children, which must include an option for non-restrained quiet play activities or other supervised activities; and
- (3) A care plan for children with special needs. "Special Needs" means special physical, developmental, or behavioral needs. This care plan must be reviewed, agreed upon, signed, and annually re-evaluated by the child's parents or legal guardians, the child care facility owner or director, the child's primary care provider, and any staff member directly responsible for the care of the child.

The bill provides that any child care facility caring for a child with "special needs", as that term is defined in the bill, must complete at least one hour of training related to special needs care. All staff members responsible for a special needs child must complete training specifically related to the needs of a child with that diagnosis. This training can count toward the required annual training hours as part of the licensed child care provider hours of training.

The provisions of this bill do not apply to children under one year of age, as existing statute governs provisions relating to safe sleep policies for children under one year of age.

The following is a summary of the public testimony from the committee hearing. The testimony was based on the introduced version of the bill.

PROPONENTS: Supporters say that our state statutes regarding nap time safety in childcare facilities have gaps that need to be closed. There is opportunity to provide better guidance, training, and safety for licensed childcare facilities. This legislation does not create unnecessary burdens, it creates necessary protections. Training makes a significant difference when dealing with different kinds of children. The rules this bill creates are realistic. This is common sense prevention and we must protect our children.

Testifying in person for the bill were Representative Laubinger; Arnie Dienoff; Heather Noll; and Kids Win Missouri.

OPPONENTS: There was no opposition voiced to the committee.

Written testimony has been submitted for this bill. The full written testimony and witnesses testifying online can be found under Testimony on the bill page on the House website.